

25STCV21646 25STCV21646

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-07-22

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Case Number: 25STCV21646 Hearing Date: July 22, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV21646

JESSICA

IBARRA, et al. vs 3621 PACIFIC AVE SAN PEDRO, LLC, et al.

July

22, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PETITIONER/PARENT/GUARDIAN AD LITEM JESSICA IBARRA'S PETITION FOR APPROVAL OF COMPROMISE OF CLAIM OR ACTION OR DISPOSITION OF PROCEEDS OF JUDGMENT FOR MINOR.

RULING:

The Court denies the Petition,
without prejudice to petition for at least a \$6,000.00 balance of the proceeds
of the proposed settlement for the Claimant after payment of all fees and
expenses.

Additionally, the
proposed form Order Approving Compromise of Claim or Action or Disposition of
Proceeds of Judgment for Minor, received June 4, 2026, at paragraph 1,
incorrectly shows the box checked for expedited approval without a hearing,
whereas one has been reserved for this date and the Petition states the date.

Petitioner to give
notice.

I.
BACKGROUND

On April 2, 2026, JESSICA
IBARRA and AALIYAH TOUTAR (Plaintiffs) filed a First Amended Complaint (FAC) against
3621 PACIFIC AVE SAN PEDRO, LLC and BEACH FRONT PROPERTY MANAGEMENT, INC.
(Defendants), listing Causes of Action for:

1.
BREACH OF CONTRACT

2.
BREACH OF IMPLIED WARRANTY OF HABITABILITY

3.
NUISANCE

4.
NEGLIGENCE

5.
WRONGFUL EVICTION

6.
VIOLATION OF THE LOS ANGELES TENANT ANTI-HARASSMENT ORDINANCE "TAHO".

Plaintiffs allege that, after renting in February 2011, in August 2023, they noticed uninhabitable living conditions including dangerous levels of toxic mold from a rain leakage, throughout 3621 South Pacific Avenue #10, San Pedro. They also allege that they vacated the property in December 2024, because Defendants, as owners/managers, would not act after Plaintiffs' repeatedly complained.

On June 4, 2026, Petitioner filed the Petition for Approval of a Minor's Compromise for Claimant AALIYAH TOUTAR, age 13, who suffered living in uninhabitable conditions but was not injured and has completely recovered.

Petitioner seeks approval of \$2,500.00 to the minor, less \$625.00 attorneys' fees, leaving a balance of \$1,875.00. The total settlement amount is \$9,500.00.

II.

LEGAL STANDARD

Petitions for approval of minors' compromises shall fully disclose all information that has any bearing on the compromises' reasonableness. (Chui v. Chui (2022) 75 Cal.App.5th 873, 899 [citing Cal. Rules of Court, rule 7.950].)

A petition for court approval of a compromise under Code of Civil Procedure section 372 must comply with California Rules of Court rules 7.950, 7.951, and 7.952. (See Cal. Rules of Court, rule 3.1384(a).) Some of the Probate Code and the Code of Civil Procedure apply to compromises as to minors' claims. (See Cal. Rules of Court, rule 7.950.) In large part, the Local Rules incorporate by reference the California Rules of Court and statutory provisions. (See Super. Ct. LA County, Local Rules, rule 4.115 et seq.)

Notice must be given to all appearing defendants in the action. (Cal.

C. Civ. Pro. §1014). Alternatively, as to an expedited petition: Unless a hearing is requested or ordered, an expedited petition must be determined without a hearing, not more than 35 days after filing, subject to extension for good cause. (Cal.

Rules of Court, rule 7.950.5(b), (c)).

Regarding disbursements,
courts may order that:

1. Those

funds shall not be disbursed without further order of the courts (id.); or,

2. The

depository shall permit the withdrawal of funds by minors at ages of majority,
without further order of the courts, based on findings that minors will attain
the age of majority on a definite date.

(Cal. Rules of Court, rule 7.953(b).)

Money or other property

to be paid or delivered pursuant to order or judgment for the benefit of a
minor, incompetent person, or person for whom a conservator has been appointed,
shall be paid and delivered as provided in Chapter 4 of Part 8 of Division 4 of
the Probate Code §3600 et seq. (Code
Civ. Proc., § 372, subd. (a).)

Courts may consider

evidence presented and determine reasonable amounts to be paid to attorneys
representing minors. (Curtis v. Fagan
(2000) 82 Cal.App.4th 270, 273; Padilla v. McClellan (2001) 93
Cal.App.4th 1100, 1106.) In cases involving the compromise of a pending action
of a minor, the court must determine an award of attorney fees under California
Rules of Court, Rule 7.955. (Gonzalez
v. Chen (2011) 197 Cal.App.4th 881, 888.)

III.

ANALYSIS

Most importantly, courts

must decide whether to approve a compromise by determining if petitioners, such
as guardians, are acting in the best interests of minors or incompetent
persons. (E.g., CCP §372(a); Scruton v. Korean Air Lines Co. (1995) 39
Cal.App.4th 1596, 1603-07.) "[T]he protective role the court generally assumes
in cases involving minors, [is] a role to assure that whatever is done is in
the minor's best interests.... [I]ts

primary concern is whether the compromise is sufficient to provide for the minor's injuries, care and treatment." (Goldberg v. Sup. Ct. (1994) 23 Cal.App.4th 1378, 1382.) Judicial discretion in approving petitions for minors' compromises, and ordering distributions, and local court policies, must be applied in the best interests of minors, in a case-by-case method, tailored to the circumstances. (Christensen v. Sup. Ct. (1987) 193 Cal.App.3d 139, 142-44.)

Here, the Court finds that the proposed compromise is not in the best interests of the Claimant, because many other like cases, involving uninhabitable living conditions without any lingering injuries, have settled for a balance for the minors of approximately a \$6,000.00 minimum, and sometimes up to around \$70,000.00. The balance here of \$1,875.00 is unacceptably low for no good reason, especially considering that it is a very small percentage of the total settlement amount of \$79,500.00 that would largely go to the parent.

IV.

CONCLUSION

The Court denies the Petition, without prejudice, as specified herein.